

Opinion of the Court

534 U. S. 103, 109 (2001) (*per curiam*) (internal quotation marks omitted). Although we have deviated from this rule in exceptional circumstances, *United States v. Mendenhall*, 446 U. S. 544, 551–552, n. 5 (1980), the circumstances here cut *against* resolving the § 107 claim. Both the question whether Aviall has waived this claim and the underlying § 107 question (if it is not waived) may depend in part on the relationship between §§ 107 and 113. That relationship is a significant issue in its own right. It is also well beyond the scope of the briefing and, indeed, the question presented, which asks simply whether a private party “may bring an action seeking contribution pursuant to CERCLA Section 113(f)(1).” Pet. for Cert. i. The § 107 claim and the preliminary waiver question merit full consideration by the courts below.

Furthermore, the parties cite numerous decisions of the Courts of Appeals as holding that a private party that is itself a PRP may not pursue a § 107(a) action against other PRPs for joint and several liability. See, e. g., *Bedford Affiliates v. Sills*, 156 F. 3d 416, 423–424 (CA2 1998); *Centerior Serv. Co. v. Acme Scrap Iron & Metal Corp.*, 153 F. 3d 344, 349–356 (CA6 1998); *Pneumo Abex Corp. v. High Point, T. & D. R. Co.*, 142 F. 3d 769, 776 (CA4 1998); *Pinal Creek Group v. Newmont Mining Corp.*, 118 F. 3d 1298, 1301–1306 (CA9 1997); *New Castle County v. Halliburton NUS Corp.*, 111 F. 3d 1116, 1120–1124 (CA3 1997); *Redwing Carriers, Inc. v. Saraland Apartments*, 94 F. 3d 1489, 1496, and n. 7 (CA11 1996); *United States v. Colorado & E. R. Co.*, 50 F. 3d 1530, 1534–1536 (CA10 1995); *United Technologies Corp. v. Browning-Ferris Industries*, 33 F. 3d 96, 98–103 (CA1 1994). To hold here that Aviall may pursue a § 107 action, we would have to consider whether these decisions are correct, an issue that Aviall has flagged but not briefed. And we might have to consider other issues, also not briefed, such as whether Aviall, which seeks to recover the share of its cleanup costs fairly chargeable to Cooper, may pursue a § 107

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cost recovery action for some form of liability other than joint and several. We think it more prudent to withhold judgment on these matters.

In view of the importance of the § 107 issue and the absence of briefing and decisions by the courts below, we are not prepared—as the dissent would have it—to resolve the § 107 question solely on the basis of dictum in *Key Tronic*. We held there that certain attorney’s fees were not “‘necessary costs of response’” within the meaning of § 107(a)(4)(B). 511 U. S., at 818–821. But we did not address the relevance, if any, of *Key Tronic*’s status as a PRP or confront the relationship between §§ 107 and 113. In discussing § 107, we did not even classify it precisely as a right of cost recovery or a right of contribution, as the dissent’s descriptions of the decision reveal. *Post*, at 172 (opinion of GINSBURG, J.) (describing *Key Tronic* as recognizing a right to “‘seek recovery of cleanup costs’” (quoting 511 U. S., at 818), but in the following paragraph saying that *Key Tronic* identified a “right to contribution”). “Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided as to constitute precedents.” *Webster v. Fall*, 266 U. S. 507, 511 (1925). Aviall itself recognizes the need for fuller examination of the § 107 claim; it has simply requested that we remand for consideration of that claim, not that we resolve the claim in the first instance.

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In addition to leaving open whether Aviall may seek cost recovery under § 107, Part III–B, *supra*, we decline to decide whether Aviall has an implied right to contribution under § 107. Portions of the Fifth Circuit’s opinion below might be taken to endorse the latter cause of action, 312 F. 3d, at 687; others appear to reserve the question whether such a cause of action exists, *id.*, at 685, n. 15. To the extent that Aviall chooses to frame its § 107 claim on remand as an im-

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plied right of contribution (as opposed to a right of cost recovery),⁶ we note that this Court has visited the subject of implied rights of contribution before. See *Texas Industries*, 451 U. S., at 638–647; *Northwest Airlines*, 451 U. S., at 90–99. We also note that, in enacting § 113(f)(1), Congress explicitly recognized a particular set (claims “during or following” the specified civil actions) of the contribution rights previously implied by courts from provisions of CERCLA and the common law. Cf. *Transamerica Mortgage Advisors, Inc. v. Lewis*, 444 U. S. 11, 19 (1979). Nonetheless, we need not and do not decide today whether any judicially implied right of contribution survived the passage of SARA.

* * *

We hold only that § 113(f)(1) does not support Aviall’s suit. We therefore reverse the judgment of the Fifth Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GINSBURG, with whom JUSTICE STEVENS joins, dissenting.

Aviall Services, Inc., purchased from Cooper Industries, Inc., property that was contaminated with hazardous substances. Shortly after the purchase, the Texas Natural Resource Conservation Commission notified Aviall that it would institute enforcement action if Aviall failed to remediate the property. Aviall promptly cleaned up the site and now seeks reimbursement from Cooper. In my view, the Court unnecessarily defers decision on Aviall’s entitlement to recover cleanup costs from Cooper.

⁶ As noted above, we do not address whether a § 107 cost recovery action by Aviall (if not waived) may seek some form of liability other than joint and several.